

Unit B1 Power of the legal adviser

Power / Order	Statutory Provision / Rule	Timing (Before, In, or After Court)
Allocation and Gatekeeping: Determining which tier of the judiciary (Magistrates, District, or Circuit Judge) should hear a case.	Allocation Rules; President's Guidance	Before Court: Performed as part of the initial gatekeeping team.
Child Impact Reports (Pathfinder): Ordering a Child Impact Report (CIR) or other welfare reports.	PD36Z; Children Act 1989, s 7	Before/In Court: Part of the investigative approach in Pathfinder areas
Consent Orders: Making a final order where all parties and Cafcass/Local Authority agree and no safeguarding concerns exist.	FPR rule 12.31; PD36ZE	In/After Court: If a draft consent order is filed or agreement reached
NCDR Referral: Directing parties to consider Non-Court Dispute Resolution (NCDR) and checking MIAM compliance.	FPR rule 3.3; PD3A	Before Court: Usually checked at the initial gatekeeping stage

- q1. Which provision sets out the powers that can be delegated by a justices' clerk (JC) to a legal adviser (also referred to as an assistant justices' clerk)?

The provision that sets out the powers that can be delegated by a justices' clerk to a legal adviser (assistant justices' clerk) is the Justices' Clerks and Assistants Rules 2014

- q2. If a court wishes to appoint a children's guardian by virtue of r.16.3 FPR in care proceedings, but one is not available owing to limited resources, how do you locally appoint a solicitor for the child? What is the statutory provision?

1. The Statutory Provision

The power to appoint a solicitor for a child in these circumstances is set out in Section 41(3) of the Children Act 1989.

2. Conditions for Appointment (Section 41(4))

Under Section 41(4), the court may make this appointment if any of the following conditions are satisfied:

- (a) No children's guardian has been appointed for the child.

- (b) The child has sufficient understanding to instruct a solicitor and wishes to do so.
- (c) It appears to the court that it would be in the child's best interests to be represented by a solicitor.

The sources clarify that the "practical difficulties leading to delay in appointing a guardian" such as the limited resources specifically satisfy the conditions for appointing a solicitor under this section (*R v Children and Family Court Advisory and Support Service* 1 FLR 953)

q3. Where would you find guidance on continuity in private and public law proceedings?

- *President's Guidance on Continuity and Deployment (Public Law) April 2014*
- *President's Guidance on Continuity and Deployment (Private Law) April 2014*

q4. What are the powers of the legal adviser to assist the magistrates in relation to the formulation of findings of fact and drafting reasons?

Rule 27.2 FPR sets out the following requirements:

- After a hearing, the court will make its decision as soon as is practicable and must give written reasons for its decision.
- When the court is made up of magistrates, including a single magistrate sitting alone, the JC/AJC must make notes of the names of the bench and, in consultation with the magistrates, of the reasons for the decision, before the order is made or application refused.
- The JC/AJC must make a written record of the court's decision.
- The court, or one of the magistrates, will announce its decision and the reasons OR a short explanation of the decision.
- Subject to other Rules/Practice Directions, a copy of the order and the reasons need to be supplied to those listed in the Rule by close of business on the day that the decision was made OR, if not practicable and the proceedings are on notice, no later than 72 hours from when the court announced its decision.

q5. What are the objectives of the Case Management Hearing (CMH) in public law cases and how should the court achieve these objectives?

Objectives of the CMH

the primary objectives of the CMH are to:

- Establish the Timetable: Draw up a "Timetable for the Child" and a "timetable for the proceedings" to ensure the application is disposed of without delay, specifically within the mandatory 26-week limit.
- Identify Key Issues: Pinpoint the core questions the court must answer and determine the evidence necessary to resolve them.
- Manage Evidence and Experts: Determine any applications for expert evidence under FPR Part 25 and ensure such instructions are "necessary to resolve the proceedings justly".

- **Ensure Fair Participation:** Identify additional parties or intervenors and give directions for special measures, interpreters, or intermediaries to assist vulnerable parties.
- **Streamline Threshold Issues:** Decide if there is a real dispute regarding the threshold criteria and encourage agreements where possible.

How the Court Achieves These Objectives

The court achieves these objectives through a structured, standardised framework known as the Public Law Outline (PLO). Key procedural steps include:

1. **Judicial Continuity:** Nominating a specific case management judge or case manager (legal adviser) who remains responsible for the proceedings throughout to provide consistency.
2. **Pre-Hearing Preparation:** Requiring an advocates' meeting (including litigants in person) no later than two business days before the CMH to identify positions and draft questions for experts.
3. **Mandatory Documentation:** Reviewing the Application Form, Annex documents, the Local Authority Case Summary, and the Case Analysis prepared by the Children's Guardian.
4. **Drafting the Order:** Requiring the local authority advocate to file a draft Case Management Order (CMO) by 11:00 am on the business day before the hearing to focus the discussion.
5. **Robust Gatekeeping:** Exercising flexible powers to cancel or repeat hearings if needed, while ensuring no hearing concludes without fixing the date for the next appointment.
6. **Addressing Capacity and Representation:** Giving directions for determining litigation capacity and appointing a solicitor for the child if the tandem model (guardian and solicitor) is necessary.
7. **Future Planning:** Listing the Issues Resolution Hearing (IRH) and the Final Hearing to ensure the case stays within the statutory timeframe

q6. What are the objectives of the issues resolution hearing (IRH) in public law cases, and how should the court achieve these objectives?

Objectives of the IRH

The primary goal is to achieve a safe and timely resolution for the child, specifically by:

- **Reviewing Final Positions:** The court reviews the evidence and the final positions of all parties to identify the remaining key issues that require determination.
- **Resolving or Narrowing Issues:** The court seeks to resolve as many disputed points as possible, which may include hearing oral evidence to settle specific issues.
- **Achieving Finality:** Advocates have a professional duty to attempt to achieve final orders at the IRH wherever possible, potentially removing the need for a full final hearing.
- **Final Case Management:** If the case cannot be resolved, the IRH serves to identify the exact evidence and witnesses required for the final hearing and to give final management directions.

How the Court Achieves These Objectives

To ensure the IRH is effective, the court and parties must follow a structured procedural framework:

1. **Mandatory Preparation:**
 - **Advocates' Meeting:** No later than seven business days before the IRH, the advocates (and any litigants in person) must meet to identify positions

and the extent to which issues can be resolved.

- Drafting the Order: The local authority advocate must notify the court of the meeting's outcome and file a draft Case Management Order by 11:00 am on the business day before the hearing.

2. Mandatory Documentation: The court must have the final evidence, the Care Plan, any threshold agreement, and a Case Analysis from the Children's Guardian before the hearing.

3. Attendance: All lay parties (parents and other relevant individuals) are required to attend the IRH in person to facilitate discussions and resolution.

4. Judicial Continuity and Expertise:

- The hearing is typically conducted by lay justices assisted by a legal adviser or a case management judge who has a clear picture of the case.

- The judge may use case management powers to narrow the issues, such as giving notice to the parties that they are considering excluding certain placement options, provided this is done with procedural fairness.

5. Utilising Flexible Powers: The court may exercise its flexible powers to treat the IRH as a final hearing if the issues have crystallised and can be justly resolved by taking evidence at that stage.

6. Listing the Final Hearing: If the matter remains unresolved, the court identifies precisely which witnesses are needed, sets judicial reading lists, and ensures the case stays within the 26-week limit

Unit B2 Justices Reasons

- q1. For what type of proceedings will the court need to provide reasons and what is the statutory authority for your decision?

In the family court, **reasons must be given in all cases, without exception**, unlike in criminal proceedings. There is a **statutory duty** upon the court to record and then provide reasons for its decision **whenever it makes an order or refuses an application**.

Types of Proceedings Requiring Reasons

The requirement to provide detailed reasons and findings of fact applies to a wide range of specific judicial actions and hearing types, including:

- **Substantive Hearings:** This includes both **interim order hearings** and **final hearings**.
- **Procedural Applications:** Reasons must be provided when determining an **application for leave** (permission) to start proceedings, the **withdrawal of an application**, or the **refusal of a request to adjourn**.
- **Case Management Decisions:** The court must give reasons for making or refusing to make directions on **contentious matters** after hearing argument. This includes decisions to direct a **split hearing** or to **extend proceedings beyond the 26-week limit**, which requires "specific justification" recorded in writing.
- **Fact-Finding Decisions:** Reasons are required both when the court **determines findings of fact** (identifying how facts establish significant harm) and when the court **decides a fact-finding hearing is NOT necessary**.
- **Special Circumstances:**
 - **Without Notice Hearings:** Magistrates must give full reasons for the initial decision to proceed **without notice** to the other parties.
 - **Departing from Recommendations:** If the court does not follow the recommendation of a **Children's Guardian** or an **independent expert**, it must specifically justify and explain that decision in its reasons.
 - **Domestic Abuse Cases:** The court must explicitly explain how findings of domestic abuse **influenced its decision** on child arrangements, particularly if contact is ordered with a perpetrator.
 - **Consent Orders:** Even when parties agree, any order made by a Legal Adviser or the court must contain reasons addressing the necessary welfare criteria.

Statutory Authority

The authority for the requirement to provide reasons is found in several procedural rules and statutory provisions:

1. **Family Procedure Rules (FPR) Rule 27.2:** This is the primary procedural rule governing the requirement for reasons in the family court.
2. **Family Proceedings Courts (Children Act 1989) Rules 1991, Rule 21(5) and 21(6):** These rules establish the statutory duty for the justices' clerk to record the reasons and for the court to state those reasons when making an order or refusing an application.
3. **Children Act 1989, Section 32(5) and (7):** Provides the specific authority requiring reasoned justification for extending public law cases beyond the mandatory 26-week timeframe.
4. **Practice Direction 12J:** Sets out the specific requirements for reasons in cases involving allegations of **domestic abuse and harm**

- q2. How should the court deal with a case where the outcome has been agreed between the parties?

When the parties to a family case reach an agreement, the court has an **overriding judicial duty to investigate** the proposals, although the depth of this investigation should reflect the existing consensus. While justices are not bound to simply "rubber stamp" an agreed order, "truly exceptional circumstances" are generally required to discard arrangements that have been sensitively negotiated between parties with legal advice.

The Role of the "No Order" Principle

Under **Section 1(5)** of the Children Act 1989, the court must always ask whether making a formal order is **better for the child than making no order at all**. In many consent cases, it is considered more appropriate for the court to make "no order" and instead set out the parents' agreed arrangements in a **recital or schedule** to the order.

Safeguarding and Domestic Abuse

The court's responsibility to protect the child remains even when parties agree:

- **Mandatory Scrutiny:** Any proposed order, agreed or not, must be carefully scrutinized to ensure it accords with the child's welfare.
- **Procedural Requirements:** A court must not make a consent order unless the **parties are present**, all **initial safeguarding checks** have been obtained, and a Cafcass officer has spoken to the parties separately (unless the court is satisfied there is no risk of harm).
- **Domestic Abuse:** The fact that an order is made by consent does not absolve the court from its responsibility to consider if **domestic abuse** is an issue or to ensure the child is not exposed to a risk of further harm.

Agreed Orders in Public Law (Care Proceedings)

In cases involving state intervention:

- **Duty to Satisfy Criteria:** An agreement between parties cannot deprive the court of its duty to satisfy itself by evidence that the strict **threshold criteria** for a care or supervision order have been fulfilled.
- **Recording Facts:** Where the threshold is conceded, the parties should be invited to acknowledge the factual basis in a **signed statement of agreed facts**.
- **Extent of Investigation:** In deciding how much further to investigate agreed proposals, the court will consider factors such as the child's interests, the likelihood of future litigation, and the emotional toll of a hearing.

Administrative and Legal Advisor Powers

- **Adopting Reasons:** The court is entitled to **adopt reasons or findings of fact** drafted by the parties. If the court intends to depart from these agreed reasons, it must first notify the parties and allow them to make submissions.
- **Legal Adviser Authority:** A **Legal Adviser** with authorised judicial functions may make a consent order provided that all parties consent, no safeguarding issues have been identified by Cafcass or the local authority, and the order is consistent with the child's welfare needs and domestic abuse guidelines

q3. What is the effect of a failure to comply with the requirement to draw up written reasons?

In the Family Court, providing written reasons is a **statutory duty** that applies in every case without exception, including interim orders, final hearings, and procedural decisions like refusing an adjournment. A failure to comply with this requirement, or the provision of inadequate reasons, carries several significant legal consequences:

1. Successful Appeal

The most immediate effect of failing to articulate findings of fact and reasons is that it creates a strong ground for a **successful appeal** against the court's decision. Appellate courts have held

that where reasons are "otherwise inadequate"—for example, providing a bare assertion that the welfare checklist was considered without explaining how it was applied—the appeal may be allowed on that basis alone (*D v R (Interim Contact Order)*).

2. Inability to Rectify Reasons Post-Appeal

Once a notice of appeal has been received, the court **cannot add to its reasons**. The appellate court will only consider the findings of fact and reasons that were announced by the justices at the time the original decision was delivered. This means a failure at the initial stage cannot be "fixed" later to save the order from being overturned.

3. Increased Procedural Scrutiny

A judgment that is unstructured or confusing makes it harder for parties to understand the decision and for higher courts to verify that the law was applied correctly. This lack of transparency **increases the likelihood of an appeal** being launched. Specific omissions that risk an appeal include:

- Failing to articulate a **welfare checklist analysis**.
- Failing to explain why the court departed from the recommendations of a **Children's Guardian or expert witness**.
- Failing to provide specific justification for extending a case beyond the **26-week limit**.

4. Procedural Irregularity

While some historical case law (e.g., *Re V (Residence: Review)*) suggests that a failure to set out specific reasons will not *necessarily* invalidate a decision if the underlying basis was sound, modern practice directions emphasize that the delivery of reasons is a core component of **procedural fairness**. For example, in certain contexts, non-compliance with procedural requirements to record decisions and reasons may be treated as a **procedural irregularity**.

5. Impact on the Child and Parties

Beyond legal technicalities, written reasons are essential because they are read by the parties and their representatives to understand the conclusion. Furthermore, the sources note that these reasons may be **read by the child** when they are old enough to understand why life-changing decisions were made about their upbringing.

q4. What role does the legal adviser play in drafting reasons?

The legal adviser plays a vital role in ensuring that the magistrates' decisions are legally sound, transparent, and properly recorded. Their role in drafting reasons is a **statutory duty** performed in consultation with the justices.

Unit B3 Allocation and gatekeeping

24 February 2026 20:43

q1. What criteria should the court consider in deciding where to allocate a private law case?

Allocation in private law proceedings must be carried out in accordance with the Family Court (Composition and Distribution of Business) Rules 2014 and with reference to the President's Guidance (Private Law).

The Schedule to the President's Guidance on Allocation and Gatekeeping for proceedings under Part II of the Children Act 1989 provides detailed criteria for identifying cases that should *not* be handled at the first tier of the Family Court.

When reviewing a private law application, the gatekeeper(s) must consider the information provided and decide which level of judiciary is most suitable. In doing so, they take into account:

- a) The need to make the best and most efficient use of local judicial resources, taking into account the nature of the application.
- b) The requirement to avoid unnecessary delay.
- c) The importance of judicial continuity.
- d) The geographical location of the parties or any child involved.
- e) The complexity of the issues.

q2. What criteria should the court consider in deciding which tier of court to allocate a public law case?

In public law proceedings, gatekeepers must refer to the President's Guidance on Allocation and Gatekeeping for Care, Supervision and other applications issued under Part IV of the Children Act 1989. This guidance is provided in accordance with rule 21 of the Family Court (Composition and Distribution of Business) Rules 2014.

The principles applied when allocating public law cases closely mirror those used in private law matters. When deciding the appropriate judicial level, gatekeepers are required to take several key factors into account:

- The information in the C110A application: Each case must be considered on the basis of the material submitted with the application, and allocation must comply with rule 20 of the Family Court (Composition and Distribution of Business) Rules 2014.
- Efficient use of judicial resources: The chosen level of judge should reflect the type and complexity of the application and make best use of the available local judiciary.
- Avoiding delay: Timeliness remains a core priority, particularly given the statutory timescales in public law proceedings.
- Judicial continuity: Decisions should promote consistency wherever possible, reducing the number of changes in judiciary.
- Location of the parties and child(ren): The geographical position of those involved should be taken into account when deciding where and by whom the case should be heard.
- Complexity: Any legal, procedural, or factual complexities should guide the level at which the case is allocated.

q3. John Edwards has applied to the family court as he wants to see his son Simon, aged 9. He is not named on Simon's birth certificate and so he does not have parental responsibility for Simon.

Miss Susan James, the respondent, lives 25 miles away in a neighbouring county and indicates in writing that she is opposed to the principle of contact and parental responsibility.

You are Gatekeeping these applications. What issues arise?

1. Legal Standing and Parental Responsibility (PR)

As an unmarried father not named on the birth certificate, John does not currently have parental responsibility. While he is considered a "parent" under the Act and can apply for a Child Arrangements Order (CAO) as of right, he must specifically apply for a Parental Responsibility Order under Section 4(1)(c) to acquire legal status

2. MIAM Compliance

A primary gatekeeping task is to check for compliance with Mediation Information and Assessment Meetings (MIAM). John is required to have attended a MIAM before making these applications unless a valid exemption applies. If he has not attended and is not exempt, the court may direct that no further steps be taken until he complies

3. Location

The mother's residence is approximately 25 miles away from the father. The location of the hearing is therefore an important consideration, particularly as there is a possibility that a safeguarding letter may be required. Having the hearing held in an appropriate location would support professionals in interviewing the child and any institution connected with the child. Additionally, if a Section 7 author is required to attend court, holding the hearing closer to the relevant services would help reduce the risk of delays and make attendance more efficient.

q4. You are Gatekeeping an application brought by Daleshire County Borough Council for a care order in respect of Ellen and Joseph Jones (twins aged 6 months). You have the documents on the pre-proceedings checklist. Among the bundle is the following information:

- Stacey Jones, the twin's mother, is 17 years old and has learning difficulties. She also has convictions for use of illegal drugs.
- Grant Knowles is named as the putative father. There is a criminal case involving an allegation of section 18 GBH against Stacey. Grant has pleaded not guilty. He has also told social workers he wants nothing to do with the twins. The criminal case is being heard in the local Crown Court. There are also historic care proceedings in respect of Grant's other daughter Katy which were heard before the DFJ.
- Angela Jones, Stacey's mother has indicated to social workers in the past that she will look after the twins. She is a district nurse. She has a difficult relationship with Stacey.
- Stacey has a social worker who is helping her understand the proceedings.
- Stacey wants the twins to live with her in her flat.
- The precipitating event for the care proceedings was that Stacey left the twins at home unsupervised while she popped to the shops – she came back 2 hours later. In the meantime, the police had been called by a neighbour as the twins were crying hysterically. When the social worker went to the flat, it was filthy and unhygienic and while there were bottles for the babies, there was no milk powder (Stacey is bottle-feeding).

- There have been previous concerns due to the violence in the relationship between Grant and Stacey.
- The local authority indicate that they think the case is suitable to be allocated to the magistrates’.

What issues arise in respect of allocation?

Key Considerations for Allocation

1. Judicial Continuity

There are existing proceedings concerning Stacey’s half-sibling, Katy, which were previously dealt with by a Designated Family Judge (DFJ). It would be appropriate to make enquiries to determine whether the DFJ considers this new matter should also come before them. Why it was allocated to a DFJ. The timing of when Katy’s case last went before the court may also be relevant in assessing whether judicial continuity is still beneficial.

2. Domestic Violence Issues

Grant is has been charged with an offence under section 18 (GBH), which is sufficiently serious to place the matter within Part 2 of the allocation guidance, cases involving very serious domestic violence.

3. Mother’s Age

The mother is over 16 and therefore not legally considered a child for the purposes of the allocation guidance.

4. Mother’s Learning Difficulties

The mother’s learning difficulties raise potential concerns regarding her litigation capacity. However, it is not yet clear whether Stacey lacks capacity.

Unit B4 Permission (leave) to start proceedings/joiner of parties

24 February 2026 23:10

q1. What criteria will the court need to take into account when deciding whether or not to grant permission in the following circumstances?

a. An application for a s.8 order.

When the applicant is not the child concerned, the court is required by **Section 10(9)** to have particular regard to the following statutory factors:

- **The nature of the proposed application:** The court examines the type of order sought and the underlying reasons for the request.
- **The applicant's connection with the child:** This includes the strength and substance of the relationship, such as between siblings or wider family members.
- **Risk of disruption and harm:** The court must evaluate any risk that the proposed application might disrupt the child's life to such an extent that the child would be **harm**ed (within the meaning of Section 31(9)).
- **Circumstances involving Local Authorities:** If the child is being "looked after" by a local authority, the court must also consider:
 - The authority's **plans for the child's future**.
 - The **wishes and feelings of the child's parents**

b. An application for contact with a child in care.

Under s.34(3)(b) Children Act 1989, an application for contact with a child in care may be made by any person who has obtained the permission of the court.

There is no similar statutory procedure for s.34 as there is in s.10 (9) when making a section 8 application. However it is clear from case law: *Re M (Care: Contact: Grandmother's Application for Leave)* [1995] 2 FLR 86 and *Re J (Leave to Issue Application for Residence Order)* [2003] 1 FLR 114 that the test in s.10(9) also applies to applications for permission under s.34.

q2. What guidance is provided in the case of *Re M (prohibited steps order: applications for leave)* [1993] 1 FLR 275 in relation to reasons?

The case held that that the justices' reasons for their decision to proceed without notice and as to permission, together with any findings of fact, should have been recorded and stated at the time of giving permission, in accordance with r.21 Family Proceedings Courts (Children Act 1989) Rules 1991 (now r.27.2 FPR).

q3. What was held in the case of *Re A (s.8 order: grandparent application)* [1995] 2 FLR 153?

The case held that the fact that permission had been granted to start proceedings did not create a presumption in favour of a substantive order.

q4. What advice would you give the magistrates if the application for permission to start proceedings for a s.8 order is made by the child?

When a child applies for permission (leave) to start proceedings for a **Section 8 order**, you should advise the magistrates that the legal framework and procedural approach differ significantly from applications made by adults.

1. The Primary Statutory Test: Sufficient Understanding

Under **Section 10(8) of the Children Act 1989**, the court may only grant leave if it is satisfied that the child has **sufficient understanding** to make the proposed application.

- **Assessment Factors:** This is a case-specific assessment that considers the child's **level of intelligence, emotional maturity**, and their reasons for wishing to act without a guardian or apply directly.
- **Understanding the Process:** The child must understand the **litigation process** and the implications of the issues in the case.
- **Judicial Discretion:** Even if the magistrates find the child has sufficient understanding, they are **not bound to grant leave**; the decision remains a matter of judicial discretion.

Alternative Options: The court should consider **why the child is seeking to apply** directly rather than having the application made by another person or through a professional.

q1. Outline the criteria the court will adopt in determining whether or not to grant such an application in both private and public law proceedings.

Refer to the following points:

- When considering the factors as to whether to join or discharge a party, there is no statutory guidance in the Children Act 1989 to assist.
- As far as the Rules are concerned, when the application to be joined is made by a person with parental responsibility, the court must grant the request – r.12.3(2) FPR.

- When considering such an application, the court must now apply the overriding objective set out in r.1.1 FPR. As a result of this change in emphasis, the cases set out below give the pre-FPR position but you should treat them with caution.

- Where a natural father, who does not have parental responsibility, applies to be joined as a party to care proceedings, the case law now suggests that there is a presumption that his application should be granted unless there is some justifiable reason for not joining him as a party – *Re B (Care Proceedings: Notification of Father without Parental Responsibility)* [1999] 2 FLR 408.

Note the case of *Re P (Care Proceedings: Father's Application to be Joined as a Party)* [2001] 1 FLR 781 for an example of an exception to the general rule.

- *G v Kirklees MBC* [1993] 1 FLR 805, highlights the fact that the guidelines in s.10(9) apply to applications to be joined as a party to care proceedings with a view to making a s.8 application in the same way as they apply to a person seeking leave to apply for a s.8 order. Also, the court is not precluded from considering the overall merits of the substantive case.

- It was said in *Re W (Care Proceedings: Leave to Apply)* [2005] 2 FLR 468 that where a person required leave of the court to make an application in public law proceedings, the test was the same as that applicable in private law proceedings. The court was to have regard to:

- the criteria laid down in s.10(9) of the Children Act 1989;
- whether the application was frivolous, vexatious or otherwise an abuse of the process of the court; and
- whether the prospects of success were so remote that the application was obviously unsustainable.

The court should also consider whether the person seeking to be made a party, had an independent or separate point of view or was putting forward an interest identical to that of another party to the proceedings. It was suggested that the test would be the same in relation to a person seeking to be made a party to proceedings with a view to potentially making a separate application in those proceedings.

- In public law proceedings, the court should consider party status at the first hearing.

q2. Outline the administrative procedure for dealing with an application to be joined as a party in relevant proceedings.

The procedure is governed by r.18.1 – r.18.12. Applicants must file a request on Form C2, providing relevant reasons.

Similar to permission to start proceedings, the application is a judicial one and will need to be considered by the court (although it is a judicial function exercisable by a single magistrate, save in respect of making a child a party or removing a child from being a party, unless all parties consent – r.2(5) FPR).

The application may be dealt with 'on the papers' – see r.18.9 and para 4.2 Practice Direction 18A – although, in most circumstances, a hearing date would be fixed providing a copy of the application to all parties concerned.

- **Welfare Checklist:** While the **Section 1(3) checklist** does not strictly apply to the leave stage, its factors (such as the child's wishes and feelings) often provide a useful framework for the court's evaluation.

4. Procedural Caution and Risks

Magistrates should approach these applications with **great caution**. Joining a child as a party to proceedings between "warring parents" carries significant risks, including:

- Exposing the child to **harmful evidence** from parents.
- Subjecting the child to **cross-examination**.
- Creating delays in the resolution of the proceedings.

5. Advice on Allocation and Transfer

If the magistrates believe the child has sufficient understanding and are minded to grant leave, you should advise them to consider the **allocation of the case**.

- **Complexity:** Cases involving a real possibility of **joining a child as a party** or a child **giving evidence** are generally considered unsuitable for lay justices.
- **Transfer Upward:** Such cases should typically be transferred to a **District Judge or higher** level of the judiciary for determination

To do List

27 February 2026 15:30

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Mentor meeting

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Unit 5 Summary

q1.

(a) Which provision allows a legal adviser to give directions?

There are a number of provisions which allow a legal adviser to give specific directions. However, the general power comes under r.4.1(3). Powers under this section are delegated to a justices' clerk (JC) or legal advisers (who is referred to as the assistant justices' clerk or AJC) under the *Justices' Clerk and Assistant Rules 2014*. In the Schedule to the Rules it states that the JC or LA/AJC has powers under s.4.1(3) FPR save for those powers granted under subsections (e)(g)(i)(l) and (m).

Rule 4.1(3) covers the court's general powers of case management – it covers the following:

- a. extending or shortening the time for compliance with any rule, practice direction or court order (even if an application for extension is made after the time for compliance has expired);
- b. make such order for disclosure and inspection, including specific disclosure of documents, as it thinks fit;
- c. adjourn or bring forward a hearing;
- d. require a party or a party's legal representative to attend the court;
- e. hold a hearing and receive evidence by telephone or by using any other method of direct oral communication;
- f. direct that part of any proceedings be dealt with as separate proceedings;
- g. stay the whole or part of any proceedings or judgment either generally or until a specified date or event;
- h. consolidate proceedings;
- i. hear two or more applications on the same occasion;
- j. direct a separate hearing of any issue;
- k. decide the order in which issues are to be heard;
- l. exclude an issue from consideration;
- m. dismiss or give a decision on an application after a decision on a preliminary issue;
- n. direct any party to file and serve an estimate of costs; and
- o. take any other step or make any other order for the purpose of managing the case and furthering the overriding objective.

(b) Which of the following directions in the table can a legal adviser make?

Direction	Yes/No	Authority
Filing of a psychiatric report	Yes	Rule 12.12(2)(h) FPR.

by the local authority.		
Party status for a grandmother.	Yes, where the parties consent	Rule 12.3(3)(a) FPR – the schedule the Justices’ Clerks and Assistants Rules 2014 indicates that this may only be done where all the parties consent (the section goes on to say ‘and where the person is not a child’, but this would not be relevant in this case).
Abridge the notice period prior to the hearing of care proceedings.	Yes	Practice Direction 12C sets out the time for serving various applications relating to children. Rule 12.12(g) FPR allows the court or JC/AJC to give directions at any stage in the proceedings about the conduct of the case, including the service of documents. N.B. Please note there is no longer any power to direct an ex parte EPO (or an ex parte hearing of any sort).

- q2. Do you always need to include the welfare checklist whenever the magistrates give reasons for a decision? What is the reason for your answer?

No. For example, the welfare checklist does not apply to unopposed s.8 orders (s.1(4) Children Act 1989) or emergency protection orders which are Part V orders.

- q3. Which of the following do not need permission to apply for the order shown in the table?

Applicant	Order	Needs Permission Yes/No	Authority
Aunt, with whom the child has lived for 3 years.	Child arrangements order.	No	s.10(5)(b)
Aunt, with whom the child has lived for 3 years.	Specific issues order.	Yes	s.10(5)
Mother.	Prohibited steps order.	No	s.10(4)
Civil partner of mother who brought up the child since she was born 2½ years ago.	Child arrangements order (specifying where a child should live)	No	s.10(5)(aa)

- q4. You are advising magistrates at the CMH about a care case brought by Northdale local authority. The advocates come to see you and say they are all in agreement that there should be an ICO. They have drafted agreed directions and, to assist the court, draft reasons which all of the parties have seen. You have a number of cases in your list. The magistrates wish to adopt the reasons handed in wholesale. What is your advice?

This issue was highlighted in the case of *Re NL (A child) (Appeal: Interim Care Order)* [2014] EWHC 270 (Fam)) which related to public law proceedings where the court had adopted agreed reasons drawn up by a local authority. Subsequent to this case revised joint guidance has been issued by the Justices’ Clerks’ Society and the Magistrates’ Association – the *Justices’ Clerks’ Society and The Magistrates’ Association, Family: Justices Reasons in Uncontested Cases March 2014*, which sets out good practice in

relation to agreed public law reasons. It states that:

- *Under no circumstances should the local authority or any other party to the proceedings be involved in drafting Justices' written Reasons. This prohibition applies irrespective of whether orders are said to be agreed or 'not opposed.'*
- *Henceforth, the court should never ask any party to supply draft Reasons or suggest that a draft be circulated amongst or consulted upon by the parties.*
- *The practice of inviting parties to submit their own position statements in which they may set out analyses of the facts as well as their contentions in relation to resulting orders is unobjectionable.*
- *It is entirely permissible for Justices' Reasons to include references to documents filed by the parties – for example position statements, case summaries and chronologies. As appropriate, parts may be adopted e.g. 'The background facts of the case are as set out in the case summary supplied by Miss A on behalf of X County Council'.*
- *In all cases, as part of the case management process, the parties should provide written details of the agreed issues as well as those which are in dispute. It is acceptable and often helpful to record that information in the Justices' Reasons*
- *Templates and / or pro forma Facts and Reasons documents may be used so long as they are created by the Justices in consultation with their Legal Adviser. If a template or pro forma is employed, the Justices must ensure that (a) case specific detail is incorporated to explain the key aspects of their decision and (b) they alone determine the content. Examples of key decisions recorded upon a template will be, how, if at all, the threshold criteria are established; and whether upon consideration of a child's welfare interests, he should remain with or be separated from his parents at any stage of the proceedings.*
- *The detail and length of the Reasons document will vary according to the complexity of the case; the stage reached in the proceedings and whether any of the facts, or the order sought, are disputed. Where all or some aspects of the case are contested, the competing arguments and the reasons for preferring a particular course should be given.*

In every case, even where the order is said to be agreed or where there is no active opposition, there is still a judicial task to perform. Justices must ensure not only that justice is done but also that it is seen to be done.

In this case the correct advice to the magistrates is that they must consider themselves whether the agreed evidence satisfies the threshold for an interim care order and what options are available to the court. They must draft their own reasons setting out their decision. They can adopt agreed facts but must conduct their own analysis.